

1 CODE 3535
Tyler E. Beach, DDA
2 Nevada Bar No. 10578
One South Sierra Street
3 Reno, Nevada 89501
(775) 337-5700
4 tbeach@da.washoecounty.gov
Attorney for Petitioner
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6 IN THE FAMILY DIVISION
7 OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
8 IN AND FOR THE COUNTY OF WASHOE

9 IN THE MATTER OF:)
10 EVAKAY BALDES, AND) Case No. JV24-00104
ALEXIS CLARK,) JV24-00105
11 Minor Children.) Dept. No. JM1
12 _____)

13 **FIRST AMENDED PETITION FOR HEARING AS TO MEGAN MCCAFFERTY**

14 I.

15 The following children are the subject of this Petition:

16 Evakay Baldes (“Evakay”), whose date of birth is October 19, 2009, and Alexis Clark
17 (“Alexis”), whose date of birth is February 24, 2014. The children’s primary residential address
18 at the time of removal was 6550 Pyramid Way, #37, Sparks, Nevada 89436.

19 There is no indication the children are Indian Children within the meaning of the Indian
20 Child Welfare Act of 1978.

21 The mother of the above-named children is Megan McCafferty (“Ms. McCafferty”),
22 whose date of birth is August 25, 1991, and whose residential address is 6550 Pyramid Way,
23 #37, Sparks, Nevada 89436.

24 The presumed father of Alexis is Donovan Clark (“Mr. Clark”), whose date of birth is
25 March 20, 1985, and whose residential address is 6550 Pyramid Way, #37, Sparks, Nevada

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1 89436. Mr. Clark and Ms. McCafferty resided together for six months prior to and through the
2 period of conception. Mr. Clark is identified as the father of Alexis on her birth certificate.

3 The legal father of Evakay is Justin Baldes (“Mr. Baldes”), whose date of birth is October
4 3, 1990, and whose residential address is 739 S 14th Street, Worland, Wyoming 82401. Ms.
5 McCafferty reported there is an active child support order in Wyoming establishing Mr. Baldes
6 as Evakay’s father.

7 II.

8 The minor children are in protective custody pursuant to an order of Master Testa after a
9 protective custody hearing on January 26, 2024. The minor children were removed from
10 parental custody on January 23, 2024, by Washoe County Human Services Agency (“WCHSA”).

11 Evakay and Alexis are placed in compliance with NRS 432B.3905 as they are placed
12 together in a foster home to avoid the separation of siblings.

13 III.

14 Petitioner, WCHSA, is informed and believes the above-named children are minor
15 children under 18 years of age and are in need of protection pursuant to NRS 432B.330(1)(b) as
16 Ms. McCafferty a person responsible for their welfare, subjected them to neglect, based upon the
17 following allegations:

- 18 (a) Ms. McCafferty was aware of Mr. Clark’s methamphetamines use and left him to
19 be the sole caregiver for the children while she worked.
- 20 (b) The children reported to Ms. McCafferty that they have found methamphetamines
21 and drug paraphernalia in the home.
- 22 (c) Ms. McCafferty was aware of Mr. Clark’s untreated mental health issues that
23 impact the safety of the children.
- 24 (d) Domestic incidents occur in the home which impacts the safety and physical
25 wellbeing of the children.

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1 IV.

2 Petitioner, WCHSA, is informed and believes the above-named children are minor
3 children under 18 years of age and are in need of protection pursuant to NRS 432B.330(1)(b) as
4 Mr. Clark, a person responsible for their welfare, subjected them to neglect, based upon the
5 following allegations:

- 6 (a) Mr. Clark is actively using methamphetamines and has not obtained treatment to
7 address his substance use.
- 8 (b) Mr. Clark uses methamphetamines while being the sole care providers to the
9 children.
- 10 (c) Mr. Clark left methamphetamines and drug paraphernalia out and accessible to
11 the children and the children have found these substances.
- 12 (d) Mr. Clark has untreated mental health issues.
- 13 (e) Mr. Clark's substance use and untreated mental health impacts the safety of the
14 children and prevents him from safely caring for the children.
- 15 (f) Domestic violence occurs in the home which impacts the safety and physical
16 wellbeing of the children.

17 V.

18 Petitioner, WCHSA, is informed and believes Evakay is a minor child under 18 years of
19 age and is in need of protection pursuant to NRS 432B.330(1)(b) as Mr. Baldes, a person
20 responsible for her welfare, subjected her to neglect, based upon the following allegations:

- 21 (a) Ms. McCafferty reports having a life long protection order, that includes Evakay,
22 against Mr. Baldes; however, at this juncture, WCHSA has been unable to verify this.
- 23 (b) Ms. McCafferty reports receiving inconsistent child support from Mr. Baldes.
- 24 (c) Mr. Baldes has not provided physical care of Evakay or had contact with Evakay
25 since 2012.
- 26 (d) Mr. Baldes does not have a relationship with Evakay.

1 (e) Mr. Baldes has taken no steps to ensure Evakay is living in a safe environment where all
2 of her needs are met.

3 VI.

4 It would be in the best interest and welfare of the minor children that a hearing be set.

5 WHEREFORE, Petitioner respectfully requests a hearing be set pursuant to NRS Chapter
6 432B, and, pending the hearing, the children remain in the custody of Petitioner.

7
8 /s/ Ryan Williamson
9 Ryan Williamson
10 Children's Services Supervisor
11 Washoe County
12 Human Services Agency,
13 Petitioner

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15 /s/ Tyler E. Beach
16 Deputy District Attorney
17 Attorney for Petitioner
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1 STATE OF NEVADA
2 COUNTY OF WASHOE

3 Ryan Williamson, under penalty of perjury, declares and says:

4 That I am an authorized representative of Washoe County Human Services Agency; that I
5 have read the foregoing petition and know the contents thereof; that the same is true of my own
6 knowledge, except those matters therein that are stated upon information and belief and as to
7 those matters, I believe them to be true.

8 **AFFIRMATION PURSUANT TO NRS 239B.030**

9 The undersigned does hereby affirm that the preceding document does not contain the
10 personal information of any person.

11
12 /s/ Ryan Williamson
13 Ryan Williamson
14 Children's Services Supervisor
15 Washoe County
16 Human Services Agency,
17 Petitioner
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